

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL APPELLATE JURISDICTION)

First Appeal No. 362 of 2018

In the matter of:

Divisional Forest Officer, Dhaka
and others.

....Appellants.

Present

Mr. Justice Mamnoon Rahman

And

Mr. Justice Khizir Hayat

-Vs-

Md. Imran Ahmed and others.

...Respondents.

Mr. Mohammad Taifoor Kabir, DAG

...For the appellants.

Ms. Fatema S. Chowdhury, Adv.

...For the respondents.

Heard & Judgment on: The 3rd February, 2020

Mamnoon Rahman,J:

This appeal is directed against the judgment and decree dated 15.01.2015 passed by the Joint District Judge, 1st Court, Gazipur in Title Suit No. 60 of 2005.

The short facts relevant for the disposal of this appeal, is that, the appellant as plaintiffs filed the suit for declaration of title alleging inter-alia that Jamidar of Muktagacha estate was the owner of 73.43 acres of land relates to C.S. Plot No. 33 under the Sreepur Police Station, Gazipur. The C.S. record was in the name of the said Jamidar. Subsequently, in the year 1951 by gezate notification the land was vested as forest land. By operation of the East Bengal State Acquisition and Tenancy Act 1950 all the properties of the Jamidars under the District Dhaka in Gazipur were acquired and vested with the government. Subsequently, S.A. record was

prepared in the name of the forest and the R.S. record was also and they are in the possession. Thereafter, on 31.03.1985 the said land was declared as reserved forest. After the publication of the L.R. in the year 1956 the Jamidars as well as private persons lost all rights over the said properties. At the time of preparation of R.S. record the C.S. was divided into 27 R.S. out of which 12 were recorded in the name of forest but 42.51 acres in separate R.S. records were recorded in the name of the defendants and their predecessors in interest. Subsequently, on 29.04.2005 the plaintiffs came to know that the defendants are erecting pillar and on query it reveals that they are the R.S. recorded tenant of the suit properties and subsequently obtaining the certified copy and filed the suit.

The respondent defendant Nos. 1-3, 17-25, 58, 26-28, 52, 53, 55, 56, 4-16, 31-33, 62 and 63 contested the suit by filing separate written statement denying all the materials allegation made in the plaint. The case of the defendant Nos. 1-3, 17-25, 58 are that the original owner of the suit property was Jubedali Molla and two others. On 15.12.1964 sold 2.45 acres land to Abdul Kader and Abdul Barek vide registered deed. Son of Jubedali Abdul Hekim on 11.03.1967 sold 70 decimals of land to Abdul Hamid and Kitabjan. Subsequently, Abdul Hamid, Abdur Rashid, Momtajuddin, Kitab Jan and Raimon Bewa on 07.4.1983 sold 2.21 acres of land to the defendant No. 3 and his brothers. Defendant No. 3 and others on 06.10.2004 sold 10.5 and half acres of land to defendant Nos. 1 and 2 relates to Plot No. 33. The defendant Nos. 1 and 2 being the owner

of the property enjoying the same by mutation and paying rent and also erected factory and by specific boundary wall.

The case of the defendant Nos. 26-28 and 52-56 are that the land belongs to the Jamidar of Muktagacha and the said Jamidar gave Pattan to Yakub Ali and Abdul Khaleque amounting to 8.54 acres of land and they are enjoying the same by Hukumnama also the father of the defendant Nos. 26 and 27 obtained a hukumnama in the year 1344 relates to 12 acres of land. The case of the defendant Nos. 4-16 and 31-33 are that the owner of the Muktagacha Jamidar and on the application of Jobed Ali for pattan the same was granted so far it relates to 20.24 and 4.78 acres of land. That the heirs of Jobed Ali Mollah namely Abdul Hakim enjoying the property relates to 16.79 acres of land. The case of the defendant Nos. 62 and 63 are that Nayeb Ali, Jobed Ali and Mozaffar Ali got the property by way of pattan in the year 1919 and they have separate khatians and also the C.S. Record 118/20 and 118/35 was recorded correctly. Also the R.S. record was prepared correctly and subsequently Abdul Hekim heirs of Jobed Ali sold property to the tune of 245 decimals to Abdul Kader and others. Also in the year 1967 transferred 70 decimals of land to Kitabjan. Abdur Razzak in the year 1970 sold 70 decimals of land to Hossen Ali and others and subsequently all the properties were transferred time to time and all the records stands in the name of the defendants vide different deeds and records and they erected house and other establishment and enjoying the same peacefully for long.

The trial court proceeded with the suit and framed as many as five issues. During trial the plaintiffs adduced one witness and the defendants adduced seven witnesses. The plaintiffs also adduced documentary evidence which were marked as Exhibits 1-4(series) while the defendants also adduced series of documents which were marked as exhibits A-K (series). The trial court after hearing the parties and considering the facts and circumstances, evidence both oral and documentary and thereby vide the judgment and decree dismissed the suit. Being aggrieved, the appellants moved before this court by way of instant appeal.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the appellants submitted that the court below without applying its judicial mind and without considering the facts and circumstances, evidences both oral and documentary and in an arbitrary manner passed the impugned judgment and decree which requires interference by this court. The learned counsel placed the impugned judgment and decree passed by the trial court as well as the relevant portions from the LC Records which includes the oral and documentary evidence and submits that the trial court misread and thereby misdirected itself arriving into an erroneous finding of dismissal in the present case in hand. He submits that the P.W. 1 categorically proved the L.R. Nos. 4836 and 4849 and also the notification as well as the gazette and subsequent certified copy of the R.S. record which were duly marked as exhibits but failed to consider the same for the purpose of declaration of title in favour of the plaintiffs. He further submits that admittedly the

property was acquired by the government by operation of the State Acquisition and Tenancy Act 1950 and subsequently the property was declared as reserved forest by subsequent notification and mere record in the name of the defendants in R.S. and S.A. does not entitle the right and title of the petitioner-plaintiffs in the property in question. He further submits that these are the properties owned by the Government and recognized as forest land and subsequently reserved forest and as such the court below ought to have disbelieved the case of the defendants and decreed the suit in favour of the plaintiffs.

Ms. Fatema S. Chowdhury, the learned counsel appearing on behalf of the respondents vehemently opposes the appeal. She submits that in the present case in hand the court below on proper appreciation of the facts and circumstances evidence both oral and documentary dismissed the suit which requires no interference by this court. She further submits that in the present case in hand the defendants placed not only sufficient oral evidence but series of documents to show their chain in the suit property from the C.S. recorded tenant and also proved their continuing and unimpeachable and exclusive possession in the suit property which clearly shows that the defendants are the owner and possessor of the property in question by way of inheritance, Pattan, Hukumnama subsequently series of registered deed of sale as much as right of records in the names of the defendants including S.A and R.S. Khatian. She further submits that the suit itself is not competent in the absence of certain prayers and the trial court on proper appreciation of the

evidence both oral and documentary dismissed the suit which requires no interference by this court.

We have perused the impugned judgment and decree, Memorandum of appeal, grounds taken thereon, LC Records, as well as necessary papers and documents annexed herewith and heard the learned counsels for the contesting parties.

On perusal of the same, it transpires that the plaintiffs filed the suit impleading the respondents as defendants for declaration of title as well as further declaration that the R.S. record of the suit property is erroneous, collusive and not binding upon the plaintiffs. The main contention as raised by the plaintiffs in the suit is that by operation of certain gazette notification in the year 1951 the property was vested as forest land and ultimately by operation of the East Bengal State Acquisition and Tenancy Act 1950 all properties belonging to the Jamidars of Dhaka and Gazipur vested with the Government by gazette notification dated 2nd April, 1956 also the property was recorded in the name of the plaintiffs in the S.A. and R.S. records and they came to know in the year 2005 that the defendants are trying to erect Pillar in the said property corresponding the C.S. Plot No. 33.

It further transpires that during trial the plaintiffs adduced one oral witness while the defendants adduced seven persons to depose in their favour. It also transpires that the plaintiffs adduced documents which were duly marked as exhibits as well as the defendants also adduced series of documents which were also duly marked as exhibits. It transpires

that the trial court framed as many as five issues and proceeded with the suit.

On perusal of the papers and documents, it transpires that the suit is maintainable as well as there is no defect of parties. The main issue is whether the suit is barred by limitation as well as the plaintiffs have right title over the suit property. It transpires that the plaintiffs after the occurrence in the year 2005 came to know about the R.S. and S.A. record and filed the suit. But on perusal of the papers and documents it clearly transpires that there was objection case in the year 1958 and 1968 as well as in the year 1969-70 under section 30 of the East Bengal State Acquisition and Tenancy Rules 1955 which were filed by the defendants regarding the suit property. So, it transpires from the said papers and documents the trial court came to a conclusion which runs as follows;

বাদীপক্ষ নালিশী আর,এস খতিয়ান সম্পর্কে Objection under Section 30 of E.B.T. Rules, 1955 অনুযায়ী ১২/২/৫৮ ইং তারিখে ২৪০ এবং ১৫/২/৬৮ ইং তারিখে ৩৫৪ ও ৩৫৫ নং আপত্তি কেস এবং আপীল কেস নং- ৫১২৯/৬৯-৭০ মোকদ্দমা দায়ের করেন। উক্ত কেস সমূহ বিবাদী পক্ষ দাখিল করেছেন। উক্ত কেস সমূহ জুডিসিয়াল নোটিশ নিয়ে দেখা যায় যে, বাদীপক্ষ বিগত ১২/২/৫৮ ও ১৫/২/৬৮ ইং তারিখ থেকেই নালিশী আর,এস রেকর্ড সম্পর্কে জানতো। নালিশী আর,এস রেকর্ড সম্পর্কে অত্র মোকদ্দমা দায়েরের পূর্বে বহু বছর আগে থেকেই জানতো। তাছাড়া নালিশী সম্পত্তি কতক বিবাদীপক্ষের নামে এস, এ রেকর্ড হওয়ায়

*উহা সংশোধন না চেয়ে নালিশী আর,এস রেকর্ড সংশোধন
চাওয়া সমীচীন নহে।*

So, it transpires that the plaintiffs are well aware of the records of rights stands in the name of the defendants much earlier as much as there is a clear finding from the trial court that the plaintiffs did not pray for any declaration so far it relates to the subsequent S.A. Records stands in the names of the defendants. It clearly transpires from the aforementioned of the Objection cases that the records in the names of the defendants are very much within the knowledge of the plaintiffs.

On meticulous perusal of the papers and documents, it transpires that especially from the deposition of D.W. 3 that the defendants filed objection case under section 30 of the East Bengal Tenancy Rules, 1955 so far it relates to R.S. khatian and they got judgment in their favour though the same was available in the same was available in the papers and documents but P.W. 1 categorically stated that the plaintiffs does not know about such record or proceeding under section 30 of the East Bengal Tenancy Rules, 1955 or whether there is any appeal by them and also it transpires that after availing all the formalities the record of right was prepared in favour of the defendants. It also transpires that the defendants claimed the suit property as heirs and purchasers from the S.A. and R.S. recorded tenants and also on perusal of the evidence filed by the defendants it clearly transpires that after such purchase as well as obtaining the property by inheritance they mutated their names and paying rent up to date as well as exhibit-B series it clearly shows the mutation,

DCR as well as rent receipt which shows *prima-facie* title and possession over the suit property. It further transpires that the trial court also considered that the suit property was recorded in the name of the predecessor in interest of the defendants in CS/SA and R.S. Khatians and also since the defendants obtained mutation and paying rent the clear findings relates to possession support the case of the defendants. It transpires that while the trial court also considered that though the plaintiffs claimed that the property was recorded in the R.S. and S.A Khatians but the defendants did not produce any certified copy of the said record of right. Though it has been claimed on behalf of the plaintiffs that the property was vested with the Government exercising the power conferred under section 7 of the East Bengal Private Forest Act, 1949 but the trial court on meticulous perusal of the said documents came to a conclusion that the suit property or the specification was not mentioned in the said gazette. Though it has been claimed that the property was declared as reserved forest under section 4 of the relevant law but since the property stands in the names of the private persons since C.S. R.S. S.A. and subsequent mutation rent receipt there is no scope to declare reserve forest of such private property without relevant provisions of law. In the cross-examination P.W. 1 categorically stated that that the defendants enjoying the suit property peacefully by erecting boundary wall as much as apart from P.W. 1 no one deposed in favour of the plaintiffs. It further transpires that the defendants in support of their claim submitted Pattannama rent receipt paid to the Jomidar certified copy of

CS and RS records mutation, rent receipt, registered sale deed which were duly marked as exhibits A-K and also supported the documentary evidence by the deposition of seven witnesses. It transpires that the predecessor in interest of the defendants obtained the land from the Jomidar by way of Pattan/Settlement and subsequent chain which clearly shows that the unbroken title and ownership of the suit property as well as exclusive possession. On meticulous perusal of the deposition of P.W. 1 it clearly transpires that if failed to assert all the dags situated in Plot No. 33 and also he is not aware of any previous proceeding relates to the suit property. So, on perusal of the papers and documents, it transpires that the trial court in the case hand committed no error regarding its finding relates to limitation, title and possession of the suit property which requires interference by this court.

Accordingly, the instant appeal is dismissed without any order as to cost. The judgment and decree passed by the court below is hereby affirmed.

Send down the lower courts record with a copy of the judgment to the concerned court below, at once.

(Mamnoon Rahman,J:)

I agree.

(Khizir Hayat,J:)

Emdad. B.O.